

Justification Review Document
for Other than Full and Open Competition - FAR Part 6

PROJECT/EQUIPMENT: PAVER Maintenance and Updates

A new contract is required for PAVER tm software maintenance and upgrades so that pavement management service is not interrupted.

AUTHORITY:

The statutory authority authorizing other than full and open competition for only one responsible source no other supplies or services will satisfy agency requirements is specified in 10 USC 2304 (C)(1), (FAR) 6.302-1(a)(2)(iii), both (A) and (B).

AMOUNT: [REDACTED]

<u>Prepared By</u> Name: [REDACTED] Signature: [REDACTED]	[REDACTED]	
<u>Contracting Officer</u> Name: [REDACTED] Signature: [REDACTED]		
<u>Requirements</u> Name: [REDACTED] Signature: [REDACTED]		

SIGNATURES ARE REQUIRED BELOW:

I have reviewed this Justification and Approval and find the justification adequate to support other than full and open competition.

<u>Project Manager</u> Name: [REDACTED] Signature: [REDACTED]	[REDACTED]
<u>Deputy for Small Business</u> Name: [REDACTED] Signature: [REDACTED]	
<u>Legal Counsel</u>	

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(Source Selection information - See FAR 2.101 and 3.104-4)

Name:

Signature:

Justification and Approval

for Other than Full and Open Competition – FAR Part 6

1. Contracting Activity: The responsible contracting agency is the U.S. Army Corps of Engineers, Northwestern Division, Omaha District, Contracting Division, 1616 Capital Avenue, Omaha, NE 68102.

2. Description of Action:

US Army Corps of Engineers - Omaha District (NWO) Request approval to enter into a sole source, firm-fixed-price C-Type contract with Intelligent Information Technologies (IIT) for continued software maintenance and updates for PAVER.

The Government intends to award a C-Type Contract to IIT for the period of time between the expiration of the contract and the establishment of the new PAVER IDC which is currently being negotiated.

The estimated value of this contract is [REDACTED] which will be awarded using O&M appropriated funding.

The period of performance is expected to be the beginning of March 2025 through March 2026.

3. Description of Supplies/Services:

Perform required maintenance, testing, updates, and support for software certification including, but not limited to the items listed below. All software maintenance shall be performed in coordination with the TSC Technical POC. Primary maintenance tasks follow:

- 1.1.1** Resolve Construction PCI - Add the ability for users (base engineer) to create an estimated PCI_{construction} (PCI_{estimated}) the day after the construction is completed by adding distresses with estimated severity and density. The PCI_e will optionally be used as specified in the Database Properties or User Preferences.
- 1.1.2** PAVER™ Actual.
 - 1.1.2.1** Create a new report that the user can use to compare actual PCI from pavement survey vs. predicted using PCI deterioration family models. Highlight sections with PCI anomaly, e.g., actual PCI is much higher than predicted with no recorded work to explain it or actual PCI much lower than predicted.
 - 1.1.2.2** Enhance the current anomaly report to optionally:
 - 1.1.2.2.1** To check for anomalies in every section throughout its history (section trend report).

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- 1.1.2.2.2 Give the user the ability to limit the investigation from a beginning date.
- 1.1.3 Simplify Pavement Section Splitting - Simplify the section split wizard to make it more intuitive and investigate providing the ability to split the section in the shapefile within PAVER™.
 - 1.1.3.1 Improve wizard steps for sample to utilize sample shapefiles for sample selection.
 - 1.1.3.2 Update shapefile geometry if user has a sample shapefile.
- 1.1.4 Update PCI after Localized M&R Accomplished - Allow users to specify localized work completed (or distress maintenance policy) to apply to inspection results and automatically update the PCI by creating an estimated PCI (PCIL). PCIL will be calculated by adjusting the PCI at inspection time and then projecting it to when the work was completed. The PCIL will optionally be used as specified in the Database Properties or User Preferences.
- 1.1.5 Develop Wizard for Modification of PCI Inspection - Develop a wizard for applying specific modifications to a PCI inspection. For example, adding a missed distress type to selected sections or changing the severity of specific distress type. The modified inspections will be notated with what modification were made and the dates they were made and be filterable in other tools. This feature will optionally be used as specified in the Database Properties or User Preferences.
- 1.1.6 Produce a version of PAVER™ with the following new features
 - 1.1.6.1 Image Inspector
 - 1.1.6.2 Slab Replacement Wizard
 - 1.1.6.3 Joint Seal Replacement Wizard
 - 1.1.6.4 PAVER™ Visual Dashboard
 - 1.1.6.5 Translation Tool
- 1.1.7 Produce a version of PAVER™ with Family ROI for Localized, Global, and Major M&R.
- 1.1.8 Further refine the Events module to include:
 - 1.1.8.1 Ability for users to define different event times such as:
 - 1.1.8.1.1 Core Locations and image of results
 - 1.1.8.1.2 Void Locations
 - 1.1.8.1.3 FWD Testing Locations
 - 1.1.8.2 Ability to store distress images to different inspection dates and the ability to view series of images for a selected pavement section.
- 1.1.9 Import Projects from Excel.
- 1.1.10 Enhance the Project Formulation Wizard by creating a work type set that includes Section selection, work type, and surface preparation.
- 1.1.11 Update PAVER activation software to correct for encountered activation errors.
- 1.1.12 Provide PAVER maintenance.

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4. Authority Cited:

10 U.S.C. 2304(c)(1), as implemented by FAR 6.302-1, gives DoD the authority to set aside requirements when there is only one responsible source, and no other supplies or services will satisfy agency requirements. FAR 6.302-1(a)(2)(iii) states: For DoD, NASA, and the Coast Guard, services may be deemed to be available only from the original source in the case of follow-on contracts for the continued provision of highly specialized services when it is likely that award to any other source would result in-(A) Substantial duplication of cost to the Government that is not expected to be recovered through competition; or (B) Unacceptable delays in fulfilling the agency's requirements.

5. Reason for Authority Cited:

a. Background

PAVER software was maintained/updated under A/E task order contracts that were established for PAVER Implementations and Re-inspections along with software maintenance and upgrades.

The task orders were solicited on Solicitation No. [REDACTED], Indefinite Delivery-Type Contract for Architectural and Engineering Services for PAVER/PCASE Pavement Management System Implementation CONUS, Alaska and Hawaii expired 9 December 2023. The current contract for PAVER Software Maintenance, W9128F24C0021, expires 13 May 2025, at which time the services will cease.

This sole source action will provide for continued PAVER tm services after the expiration of the current contract. There is not another contract vehicle available to provide these services as the main contract vehicle for PAVER services was the now expired PAVER MATOC. NWO- CT issued the synopsis/solicitation for the new AE PAVER MATOC on 07 March 2024 with award of three to five IDCs anticipated in July 2025.

PAVER is a government off the shelf (GOTS) software tool for Pavement Management. The software tool has been in development and in use since the 1970s. Originally developed and managed at the Construction Engineering Research Laboratory (CERL), the program's maintenance and update migrated to the TSC in 2011. The program enables the pavements community in the Army, Air Force, and Navy to manage their pavement networks more effectively, substantially lengthening the service life of pavements and avoiding capital reconstruction cost of failed pavements. See <https://transportation.erdc.dren.mil/paver/Features.htm> for greater detail. NATO adopted the Pavement Condition Index (PCI) developed in PAVER for the maintenance management of their airfields and communication of pavement condition among countries. Furthermore, the software tool outputs a Foreign Object Damage (FOD) potential rating that defines the level of risk to military aircraft based on their susceptibility to engine damage, a key indicator in the preservation of critical national defense infrastructure across the world.

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a. Justification

1. Intelligent Information Technologies (IIT) is the only source qualified to provide this service. IIT has worked closely with CERL and the TSC to develop, upgrade, and maintain the pavement management software for over 30 years. IIT was awarded multiple PAVER maintenance and update contracts and most recently have been providing this support through TSC A&E Services contracts as a partner with firms on the Architectural and Engineering Services for PAVER/PCASE Pavement Management System Implementation contract. IIT is the PAVER software and maintenance experts to such an extent that they are listed on several related patents with the US Patent and trademark office. Three additional pending patents for innovation/invention are currently in process at USPTO. It is essential that the follow-on contract for PAVER software and maintenance utilize IIT to perform this highly specialized service for PAVER software and maintenance since they are the only firm with cooperate knowledge, overall staff, understanding, and experience for this unique software. This software was developed for the PAVER application for unique government use, and the full suite is not available in the commercial market. PAVER is GOTS software and IIT is the only firm that has provided this software to the Government making them the sole firm uniquely qualified. Another firm could not provide this service in a timely manner without hiring IIT. Pavement management software does exist in the commercial market. However, many of the services have mirrored PAVER concepts with respect to Pavement Condition Index but are not military specific for Foreign Object Debris on Airfield nor have crucial Real Property Data capability.

2. Using another firm, beside IIT, would result in substantial delays. Soliciting this PAVER software requirement would result in substantial delays to solicit under a competitive action and then to receive the product. IIT has the qualified and experienced employees already on staff to provide PAVER software immediately without lapse in service. Hiring another firm besides, IIT would take a significant amount of time to ramp-up operation for staffing, development, understanding, the software that which IIT already has developed, and the government has paid for.

Using another firm besides IIT would result in duplication of costs. The government has already incurred and paid the ramp-up costs for the development of the PAVER software. Hiring another firm would require a proposal to include more than just the cost to execute PAVER software. It would need to include costs associated with the ramp-up time and development for software, for which the government has already paid.

A sole source award to IIT provides USACE with the opportunity for success due to the need for the continuation for this highly specialized service. The PAVER software has already been developed and built by IIT. They are included in current and pending patents for PAVER software and thus are solely qualified to continue provide this service. Using another firm for this service is not possible, as they would not have the 30 years of software development and execution that IIT has uniquely provided for PAVER. In addition, hiring another firm would result in substantial time delays and costs associated with the development of any software.

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Service provided is a unique and innovative concept and tied directly to research and development at ERDC GSL lab. Substantial duplication of cost to the Government that is not expected to be recovered through competition would occur. Additionally using alternative contract would result in unacceptable delays in fulfilling the agency's requirements, i.e. a gap in software maintenance and upgrades would occur.

b. Impact

The impact from the from duplication of cost would result in increased cost, schedule and technical risk. IIT the only firm who has developed built, and executed this unique service and they possess the corporate knowledge and expertise to continue to execute. Should a new firm be hired, it would result in increased costs due to ramp up; increased time due to solicitation and ramp up; time and increased technical risk due to lapses in service, bugs and errors.

c. Alternatives

Alternatives considered are the following:

- i. New competitive stand-alone contract. This alternative will risk excessive duplication of costs and result in a significant delay of services.
- ii. Wait for new A/E IDC to be solicited and a task order awarded. This IDC is currently under development under CBEST [REDACTED]. This alternative would cause an unnecessary delay of up to 6 months, depending on negotiations, resulting in impact of lack of services.

6. Efforts to Obtain Competition:

Based on information in paragraph 5 above and conclusions from previous market research, competition for this sole source action was determined not to be reasonable due to the duplicative costs and market research results showing no other qualified or capable firms.

7. Actions to Increase Competition: The future A/E IDC CBEST [REDACTED] will allow for increased competition and is currently being solicited.

8. Market Research:

Market research was conducted via two methods: Sources sought posting on System for Award Management (SAM.gov) and through the FPDS-NG and DSBS sites. The Sources Sought was issued in the under number W9128F25SM023 on 31 January 2025 with a response date of 14 February 2025. Any responses will be evaluated, and this J&A will be updated with the results. Searches in FPDS-NG and DSBS resulted in apparent capable contractors, however further inquiry resulted in no viable contractors, see summary below. The other two methods used for

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searching the prospective market FPDS-NG site and Dynamic Small Business are summarized below:

FPDS-NG Site Search:

Search Info: NAICS 541330 Paver and Paver Software

Results: 11 Results were found with the combinations above. All related to the software system.

A range of contractors were awarded for the PAVER system maintenance. All awards were out of the Omaha district.

Search Info: NAICS 541330 PAVER

DSBS Site Search:

Search Info: Any State, 541330, Paver Maintenance Software Results: No Results

9. Interested Sources: We have not received any responses to the Sources Sought at this time, and if any are received, we will determine if they are an acceptable source and this J&A will be updated.

10. Other Facts: A notice of intent will be published in accordance with FAR 5.203(a) after approval is received for this J&A and prior to issuance of a request for price proposal. In addition, the approved, redacted J&A will be posted in accordance with FAR 6.305.

11. Technical Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

Date

12. Requirements Certification:

I certify that the supporting data under my cognizance, which are included in the justification, are accurate and complete to the best of my knowledge and belief.

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[REDACTED]

13. Fair and Reasonable Cost Determination

I hereby confirm that the anticipated cost to the Government for this contract action will be determined as fair and reasonable prior to award. The determination of price reasonableness will be based on comparison to the Independent Government Estimate and current fair market value.

[REDACTED]

Date

Jessica Beckman
Contracting Officer

14. Contracting Officer Certification

I hereby certify that the supporting data under my cognizance, which are included in the

[REDACTED]

BECKMAN, JESSICA LYNN 1255927210 Digitally signed by BECKMAN, JESSICA LYNN 1255927210

[REDACTED]

Date

[REDACTED]

APPROVAL

Based on the foregoing justification, I hereby approve the procurement of software service PAVER tm Maintenance and Updates on an other than full and open competition basis pursuant to the authority provided under 10 U.S.C. 3204(a)(1) and 10 U.S.C. 3204(b)(B)(i) and (ii), Federal Acquisition Regulation (FAR) 6.302-1 – Only One Responsible Source and No Other Supply or Service Will Satisfy Agency Requirements, subject to the availability of funds, and provided the procurement described herein

A large black rectangular redaction box covering the signature of the Contracting Officer.

Contracting Officer

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(Source Selection Information - See FAR 2.101 and 3.104-4)